

OPERATING AGREEMENT
FOR
R.A.I.N TECHNOLOGIES LLC
A Wyoming Limited-Liability Company
Taxed as an S Corporation

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**OPERATING AGREEMENT FOR
R.A.I.N TECHNOLOGIES LLC
A Wyoming Limited Liability Company
Taxed as an S Corporation**

This Operating Agreement (the "Agreement") is effective as of the date the Articles of Organization for "**R.A.I.N Technologies LLC**", a Wyoming Limited Liability Company, were filed and recorded with the Wyoming Secretary of State. This Agreement is entered into between those persons who have subscribed for membership interests as evidenced by their signatures on this Agreement (hereinafter collectively referred to as the "Members".)

The Members have formed a Limited Liability Company (the "Company") pursuant to Chapter 29 of the Wyoming Revised Statutes, as amended ("Chapter 29"), and applicable Wyoming laws, to be governed accordingly to the terms and conditions as hereinafter set forth. The Members further desire to structure the Company as a corporation for federal and state income tax purposes and file an election to be taxed as an S Corporation pursuant to Internal Revenue Code Section 1362 (a). For state law purposes, the Company shall be treated as and subject to the legal requirements and restrictions relating to limited liability companies in general.

1. NAME.

The name of the Company shall be: "**R.A.I.N Technologies LLC**", a Wyoming Limited Liability Company.

2. DEFINITIONS.

Definitions for certain terms, words and phrases used in this Agreement are as follows:

2.1 "Agreement" or "Operating Agreement" means this Operating Agreement dated, as amended from time to time with the written consent of a simple majority all of its Members.

2.2 "Articles of Organization" or "Articles" means the Articles of Organization of "**R.A.I.N Technologies LLC**", as amended from time to time.

2.3 "Board of Managers" shall mean collectively all of the managing Members of the Company.

2.4 "Chapter 29" shall mean Chapter 29 of Title 17 of the Wyoming Statutes ("WS"), as amended, or any corresponding applicable provisions of succeeding law.

2.5 "Code" shall mean the Internal Revenue Code of 1986, as amended from time to time, or any corresponding provisions of succeeding law.

2.6 "Company" shall mean "**R.A.I.N Technologies LLC**".

2.7 "Distributable Cash" shall mean the amount of cash which the Managers deem available for distribution to the Members, taking into account all of the Company debts, liabilities, and obligations then due and amounts which the Managers deem necessary to place into reserves for customary and usual claims with respect to the Company's business.

2.8 "Distribution" shall mean to any money or other property transferred without consideration to Members in proportion to their interests in the Company.

2.9 "Interest Holder" means the holder of any interest in the Company upon the transfer of membership interest without the transferee being admitted to the Company as a Member.

2.10 "Manager" means the Member, Members, or non-Member(s) who are referred to as the Manager in Section 6 hereof as the member-managed or manager-managed Manager, or any successor or successors.

2.11 "Member" means any holder of a membership interest in the Company who a) is a Qualified Person and b) has become a Member pursuant to the terms of this Agreement, and as set forth in this Agreement.

2.12 "Membership Interest" or "Interest" shall mean the respective right of a Member or Interest Holder to a proportionate share of the economic benefits of the Company, including net profits, net losses, and distributions, and with respect to Members, the right to vote on matters as to which the Operating Agreement requires or permits Members to vote. There shall only be one class of Membership Interest. Members or Interest Holders shall not be personally responsible for any debts or liabilities of the Company.

2.13 "Net Profits and Net Losses" shall mean, for each fiscal year or other period, an amount equal to the Company's income or loss for such year or period (including any gain or loss realized on the sale or other disposition of assets), determined in accordance with generally accepted accounting principles.

2.14 "Partnership Representative" pursuant to Code Section 6223 (in the event the Company shall ever be taxed as a partnership) shall mean **Jarrid Cavanaugh** or another person with a substantial presence in the United States designated by the Manager.

2.15 "Percentage Interest" shall mean the percentage of each Member's stock ownership in the Company as set forth opposite the name of such Member under the column "Member's Percentage Interests" in Schedule A hereto, as such percentage may be adjusted from time to time pursuant to the terms of this Agreement.

2.16 "Property" means any real or personal property in which the Company has any right, title or interest.

2.17 "Qualified Person" shall mean a person other than (i) any nonresident alien, (ii) any person other than an individual, and an estate or type of trust permitted to qualify as a shareholder of an S Corporation; or (iii) any person otherwise eligible to be a shareholder who would cause the Company to have more than 100 members.

2.18 "Regulations" shall mean the regulations issued by the U.S. Treasury Department under the Code.

2.19 "S Corporation" shall have the same meaning as it does under Code Section 1361 (a) (1).

2.20 "S Election" shall mean the election described under Code Section 1362 (a).

2.21 "Simple Majority" shall mean the aggregate of Membership Interests exceeding 50% of all membership interests entitled to vote.

2.22 "Substitute Member" means any transferee who, in addition to the rights of an assignee, shall be admitted as a Member with all rights and obligations pertaining thereto.

2.23 "Transferee" means a person to which a transferring Member sells, transfers, encumbers, assigns or otherwise disposes of all or any part of the Member's interest in the Company.

2.24 "Transferring Member" means a Member who voluntarily sells, transfers, encumbers, assigns or otherwise disposes of all or any part of the Member's interest in the Company to any person.

3. PRINCIPAL OFFICE/REGISTERED OFFICE/TAXATION.

3.1 Principal Office.

The principal office of the Company in the State of Wyoming shall be located at:

172 Center Street, Suite 202
Box 2869
Jackson, WY 83001

The Company may have such other offices, either within or without the State of Wyoming, as the Manager may designate or as the business of the Company may from time to time require.

3.2 Registered Office.

The agent for service of process in the State of Wyoming and the address of the registered office of the Company shall be:

CORPORATE DIRECT, INC.
172 Center Street, Suite 202
Box 2869
Jackson, WY 83001

The registered office and agent may be changed from time to time by action of the Manager and by filing the prescribed form with the Wyoming Secretary of State.

3.3 Taxation.

3.3.1 S Election. The Members hereby consent to the election of the Company to be treated as an association taxable as a corporation for federal and state income tax purposes and shall cooperate in the Members' election to treat the Company as an S Corporation by filing an S Election on behalf of the Company pursuant to Code section 1362(a), which election shall be effective as of the date the election to be treated as an association taxable as a corporation is made. From and after the effective date of the S Election, the Company shall be an S Corporation for federal and state tax purposes, unless a unanimous vote of the Members shall select another method of taxation. If such a change in election is approved then all of the Members shall execute the appropriate election form required under the Code or Regulations to reflect another method of taxation.

3.3.2 The annual accounting period for financial and tax purposes shall be a calendar year. The Members, by a unanimous vote, may amend the annual accounting period.

3.3.3 In order to calculate its taxable income, the Company shall use the cash value of accounting as set forth in Schedule B. The Members, by unanimous vote, may amend the method of accounting used by the Company.

4. PURPOSES, POWERS AND SPECULATIVE NATURE OF BUSINESS.

4.1 Purpose.

The Company is principally organized for such lawful purposes as the Members may from time to time authorize as permitted under Chapter 29. The specific purposes of the Company are to hold and manage investments.

4.2 Powers.

The Company shall have all the powers granted to a limited liability company under the laws of the State of Wyoming.

4.3 Nature of Business.

The Members herein acknowledge and agree that the business the Company intends to engage in is speculative in nature and that no guarantees can be made as to future success and/or returns.

5. TERM/CONTINUING OBLIGATIONS/COMPANY A PARTY.

5.1 Term.

The Company shall commence its existence on the date its Articles of Organization are endorsed by the Wyoming Secretary of State and shall only terminate when dissolved as provided in this Agreement, the Articles of Organization, or by statute.

5.2 Continuing Obligations.

This Operating Agreement is an executory and ongoing contract with continuing obligations. The Manager may require the Members to contribute \$200 per year, assessed according to their ownership interests. Any assessment above \$200 per year shall require a simple majority vote of the Members.

5.3 Company A Party To This Agreement.

Upon the Company's formation, the Company Manager shall sign this Operating Agreement on behalf of the Company and the Company, at such time, shall become a party to this Operating Agreement.

6. MANAGEMENT.

6.1 Manager.

The Company shall be Member managed, and shall be managed by a Board of Managers composed of Members of the Company, and shall be referred to herein as the Managing Member or Board of Managers. The authorized number of Managing Members of this Company shall not be less than one (1) or more than three (3). The initial number of Managing Members shall be four (4) and shall be Jarrod Cavanaugh, Michael Anthony Brait, Jr., Stone Vardon Hazlett, and Brock William Rice. Henceforth, every reference to Manager shall refer to the Managing Member.

6.2 Election and Term of Manager.

6.2.1 At each annual meeting of the Members, the Manager shall be elected by the Members holding a majority of the Member votes to hold office until the next annual meeting. Each Manager shall hold office until the expiration of the term for which elected and until a successor has been elected and qualified, except in the case of the death, resignation, or removal of such Manager.

If a Manager should die or become legally incapacitated as determined by a court of competent jurisdiction or by written opinion of two (2) physicians licensed in the incapacitated Manager's state of residence, then the successor trustee/personal representative of the deceased or incapacitated Manager shall become a Manager in his place. If the successor trustee/personal representative of the deceased or incapacitated Manager is not the spouse of that Manager, then the successor trustee/personal representative of the deceased or incapacitated Manager may only become a Co-Manager upon unanimous written consent of the other Manager(s).

6.2.2 The death, resignation or removal of a trustee of a revocable trust of a Member shall not be considered an event which creates a vacancy in the position of Manager or Co-Manager, except as set forth in 6.2.1, as long as the pertinent revocable trust agreement provides for a successor trustee or a means of selecting a successor trustee of that trust.

6.2.3 A Manager may resign as Manager upon giving thirty (30) days' written notice to each Member. The Manager shall have no liability to the Company or to the other Members for any such resignation, except as otherwise provided in this Agreement. Such resignation shall not absolve the Manager from any liabilities arising before the resignation.

6.2.4 Any vacancy in the office of Manager shall be filled by the affirmative vote of Members holding a majority of Member votes.

6.3 Removal of Manager

Any Manager may be removed from office without cause by a simple majority vote of the Members.

6.4 General Obligations.

The Manager shall cause to be filed original or amended documents and shall take any and all other actions as may be reasonably necessary to perfect and maintain the status of the Company as a limited liability company under the laws of the State of Wyoming and any other states or jurisdictions in which the Company engages in business and, if required by law, shall execute and cause to be recorded appropriate original or amended documents in each county in each such other state in which the Company owns real property. Unless the Code or Regulations require otherwise, and subject to the authority of the Partnership Representative, (if applicable) an individual manager appointed by the Board of Managers shall serve as the Tax Matters Manager with regard to all matters involving taxation, except for audits (if applicable) regarding the services of the Partnership Representative. The manager shall use reasonable efforts to inform the Members on a current basis, concerning the internal affairs of the Company and the condition of its business.

6.5 General Authority.

Subject to the provisions of Sections 6.8 and 6.9, the Manager shall have complete and exclusive control over the management of the business and affairs of the Company. If there is a Board of Managers or multiple persons within a company designated as the Manager having control over management of the business of the Company, the rights and powers of the Manager shall be exercised among them as they may agree among themselves, but in the absence of such an agreement or in the event of deadlock or other lack of decision pursuant to such agreement, they shall be bound by the simple majority vote of the Members. Notwithstanding the above, all leases of Property, for whatever duration, must be approved by the Manager. Except as provided in Sections 6.8 and 6.9 hereof, the Members shall have no right to participate in the management or control of the business and affairs of the Company, and shall have only the voting rights specifically set forth in this Agreement or as otherwise required and not subject to waiver under Chapter 29. In addition to this general management authority, the Manager shall have the following specific rights, subject to compliance with the other provisions of this Agreement:

6.5.1 To contract to lease any of the Company's property or any portion thereof or any interest therein provided, however, that any lease which extends beyond the term of the Company, if any, must be approved by a simple majority vote of the Members;

6.5.2 To acquire, purchase and sell real and personal property and long term securities, However, any such purchase which shall utilize over fifty percent (50%) of the Company's assets, shall be approved by a simple majority vote of the Members;

6.5.3 To operate, manage, and collect income from any property owned or leased by the Company in accordance with this Agreement;

6.5.4 To borrow money from banks, other third party lenders or the Members on terms and conditions which the Manager deems reasonable, and to pledge, mortgage and grant security interests or deeds of trust in or on any property owned by the Company as security for the payment of indebtedness authorized by this Agreement;

6.5.5 To mortgage, pledge, hypothecate, or authorize or grant any security interest to, lien in or on Company property other than to secure repayment of indebtedness authorized by this Agreement;

6.5.6 To make any reasonable expenditures for the organization, operation and conduct of the business and affairs of the Company and to negotiate, execute, acknowledge, file, record, deliver and perform any agreements and instruments considered necessary or appropriate by the Manager for the conduct of the Company business and affairs in accordance with this Agreement or for the implementation of the powers granted under this Agreement;

6.5.7 To prepay, modify, amend, renew, or extend any authorized Company indebtedness;

6.5.8 Subject to the obligations of the Partnership Representative (if applicable), to make any and all elections for federal, state and local tax purposes; if permitted by applicable law and if applicable to the Company's tax regime, to adjust the basis of property pursuant to the Code or successor statutes, or comparable provisions of state or local law, in connection with transfers of any membership interest in the Company and Company distributions;

6.5.9 To invest Company funds in commercial paper, government securities, certificates of deposit, time deposits, banker's acceptances, money market funds, or similar investments having a maturity generally considered to be short term;

6.5.10 To employ or engage and compensate persons to assist in the operation and maintenance of the Company and its property and to perform the Company's administrative services, accounting services, independent auditing services, legal services, and other reasonably necessary services for the benefit of the Company;

6.5.11 To pay all organization expenses incurred in the creation of the Company;

6.5.12 To file or record any amendments to the Agreement or other forms required by the Wyoming Secretary of State for the operation of the Company, pursuant to Chapter 29;

6.5.13 To distribute profits. There is no requirement to distribute profits. If the Manager, in its sole discretion, shall refuse to distribute profits, each Member or transferee shall be responsible for the payment of any income taxes on such earnings;

6.5.14 To make and to enter into such agreements and contracts with such parties and to give such receipts, releases, and discharges with respect to any and all of the foregoing and any matters incident thereto as the Manager may deem advisable or appropriate;

6.5.15 To make such classifications, determinations and allocations as the Manager may deem advisable, having due regard for any relevant generally accepted accounting principles;

6.5.16 To take such other action and to perform such other acts as may be deemed appropriate to carry out the business and affairs of the Company.

6.6 Scope of Duties.

6.6.1 Subject to Section 6.13, a Manager shall not be required to devote full time to the business or affairs of the Company, but shall devote the time reasonably necessary to perform the duties of the Manager under this Agreement and to prudently manage and operate the Company's business and properties.

6.6.2 A Manager shall use their best efforts to protect the limited liability of the Members and Manager in their capacity as Members and Manager. These measures shall include the following:

(a) Use of Company name

The Manager shall ensure that the words "Company", "Co.", "Limited Liability Company" or "LLC" appears after the name of the Company in all Company stationery, checks, business cards, invoices, advertisements and other media containing the name of the Company and likely to be read, seen or heard by third parties. The Manager herein acknowledges the importance of entity notice in preventing a piercing of the LLC veil of protection.

(b) Separate books and accounts; No commingling

The Manager shall ensure:

- (1) That the books and accounts of the Company are maintained separately from those of any Member or Manager;

(2) That there is no commingling of the assets of the Company with those of any Member or Manager; and

(3) That no Member borrows money or other assets from the Company, or lends money or other assets to it, except on the basis of reasonable documentation and arm's-length terms.

(c) Adequate capitalization

The Manager shall use their best efforts to ensure that the Company's cash and other assets, cash flow, insurance and other financial resources are sufficient to enable it to meet its reasonably foreseeable liabilities when due.

(d) Signing of agreements; Dealings with others

In signing any agreement or other document on behalf of the Company, Manager shall expressly identify himself as Manager. In dealings with third parties on behalf of the Company, Manager shall identify the Company as the party on whose behalf they act and shall identify themselves as Manager of the Company.

(e) No misleading of third parties

Manager shall use their best efforts to ensure that no third party is misled into believing that any Member or Manager is personally liable for any Company obligation.

6.7 Limitation of Liability and Indemnification of Managers.

6.7.1 The Manager shall not be personally liable for the return of any capital contribution of any Member or for any profits thereon, and any return of capital or profits shall be made, if at all, solely from the assets and business of the Company;

6.7.2 Except as otherwise provided herein, the Manager shall not be liable to the Company or the Members or other Interest Holders for any act or omission in connection with the business or affairs of the Company so long as the Manager against whom liability is asserted acted in good faith on behalf of the Company and in a manner reasonably believed by the Manager to be within the scope of authority under this Agreement and in the best interests of the Company, unless such act or omission constitutes gross negligence, intentional misconduct, fraud, or knowing violation of law;

6.7.3 To the extent not otherwise covered by liability insurance, the satisfaction of the indemnity obligations of the Company under Section 6.7 of this Agreement shall be from and limited to the assets of the Company, and no Member or other Interest Holder shall have any personal liability for satisfaction of such indemnity obligations, other than the separate personal guarantees made by one or more of the Members. In the event a final determination is made by a court or pursuant to the arbitration provisions of this Agreement that the Company is not obligated for any amounts previously paid to it or on behalf of any Manager, the Manager shall refund that amount within thirty (30) days of the final court determination;

6.7.4 In the event there is more than one Manager at the time any alleged liability arises under this Agreement or in favor of any Member or other Interest Holders against the Managers, the liability of each Manager shall be joint and several. Multiple Managers shall have the right separately to agree upon indemnification and contribution obligations among themselves;

6.7.5 The Company or its successor, trustee or receiver shall indemnify, defend and hold harmless the Manager against all claims, demands, actions, losses, liabilities, damages, costs and expenses, which after the date of this Agreement arise out of the Company or its business or affairs, including reasonable attorneys' fees incurred in defending all such matters. However, this indemnification shall apply only if the Manager against whom a claim, action or demand is asserted has acted in good faith on behalf of the Company and in a manner reasonably believed by the Manager to be within the scope of authority under this Agreement and in the best interests of the Company, and only if the act or omission underlying the claim, action or demand did not constitute

gross negligence, intentional misconduct, fraud, or a knowing violation of law.

6.8 Binding Authority.

The signature of the Manager shall be sufficient to bind the Company to any agreement or on any document or instrument. In the event there is more than one person serving as Manager, the signature of any one Manager shall be sufficient to bind the Company to any agreement or on any document or instrument. Each Member and other Interest holder agrees not to assert any claim to the effect that execution or performance of any such instrument or document breached this Agreement of the duties of the Manager, against any person dealing with the Manager in good faith and without actual notice of the asserted claim at the time of the delivery of the instrument or document; provided, however, that this Section 6.8 shall not be construed to limit any recourse by any Member against the Manager. Any person dealing with the Company may rely upon a certificate signed by the Manager or, in the event of multiple Managers, any of the Managers, as to (a) the identity of any Member, (b) any fact relevant to the Company and (c) the due authority of the person purporting to act on behalf of the Company.

6.9 Vote Restrictions on Manager Authority.

Without the simple majority vote or written consent of all the Members, no Manager shall, on behalf of the Company, directly or indirectly;

6.9.1 Do any act in contravention of this Agreement, as amended from time to time;

6.9.2 Do any act which would make it impossible to carry on the ordinary business of the Company, provided that actions of the Manager in accordance with the purposes of the Company or rights and powers granted under this Agreement shall not be considered to breach this clause;

6.9.3 Confess any judgment or settle any claims asserted against the Company;

6.9.4 Possess Company property, or assign rights in any Company property, for other than a Company purpose;

6.9.5 Knowingly perform any act that would subject any Member to liability as a General Partner of a partnership in any jurisdiction;

6.9.6 Commingle funds of the Company with funds of any other person;

6.9.7 Lend to any person any of the cash funds or other Company property;

6.9.8 Borrow funds from any Manager or Member;

6.9.9 Mortgage, pledge, hypothecate or authorize or grant any security interest to, lien in or on Company property for the purpose of securing repayment of the personal indebtedness of any of the Members;

6.9.10 Purchase or lease Company property from the Company or sell or lease property to the Company;

6.9.11 Guarantee the indebtedness of any person or cause, suffer or permit any Company property to secure or become collateral for any indebtedness of any person other than the Company;

6.9.12 Amend the number of Managers set forth in Section 6.1 of this Agreement;

6.9.13 Unless such Manager has been appointed as the Partnership Representative (if applicable) for the Company, as provided herein, extend the statute of limitations for assessment of tax deficiencies against the Company and/or its Members with respect to adjustments to the Company's federal, state or local tax returns;

6.9.14 Unless such Manager has been appointed as the Partnership Representative (if applicable) for the Company, as provided herein, represent the Company, the Members or Interest Holders before taxing authorities or courts of competent jurisdiction in tax matters affecting the Company, the Members and any Interest Holders in their capacities as such, or to execute any agreement or other documents relating to or affecting tax matters, including agreements or other documents that bind the Members and Interest Holders with respect to tax matters or otherwise affect the rights of the Company, Members and Interest Holders;

6.9.15 Prosecute or defend claims by or against the Company or affecting title to Company property, and, unless such Manager has been appointed as the Tax Matters Member for the company, to contest any determination by the Internal Revenue Service or any state or local taxing authority as to any matters affecting the Company, any Members or Interest Holders;

6.9.16 Admit a new Member to the Company; including, but not limited to, admitting a non-Qualified Person as a member;

6.9.17 Do any act in contravention of this Agreement or which would make it impossible or unreasonably burdensome to carry on the business of the Company.

Notwithstanding the above, the Manager shall have the right to take such actions as the Manager, in the Manager's reasonable judgment, deems necessary for the protection of life or health or the preservation of Company assets if, under emergency circumstances, in the good faith estimation of the Manager, there is insufficient time to allow the Manager to obtain the approval of the Members to such action and any delay would materially increase the risk to life or health or preservation of assets. The Manager shall notify the Members of each such action contemporaneously therewith or as soon as reasonably practicable thereafter. Such authority shall lapse and terminate upon reduction of such risk to life or health or preservation of assets or upon receipt by the Manager of telephone, telegraphic or written notice from any Member of such Member's disapproval of any or all of the proposed actions.

6.10. Insurance.

At all times that the Company owns real property or remains in operation, to cause the Company to obtain and maintain fire and other casualty, rental income or interruption, general liability, workers compensation, automobile and other insurance, as well as liability insurance for its Manager and Members, in such amounts and from insurers customarily required or acceptable for these purposes.

6.11 Contingency Reserve Fund.

The Manager may open and maintain a separate general operating account with a bank, in the name of the Company; to the extent funds are available from the net profits of the Company. This fund shall be maintained to provide a contingency account for minor operational emergencies and shall be utilized at the sole discretion of the Manager. All withdrawals from said fund are to be made upon checks signed by the Manager or all of the Members of the Board of Managers, as the case may be, or such other person as the Manager shall agree to in writing.

6.12 Independent Activities.

The Members hereby acknowledge and agree that each Member or Manager may engage in any activity whatsoever (as an owner, employee, consultant or otherwise), whether or not such activity competes with or is enhanced by the Company's business and affairs.

6.13 Time Devoted to Business.

No Manager shall be required to devote all of such Manager's time to the business, unless otherwise obligated to do so pursuant to a separate written Employment Agreement with the Company.

6.14 Presumption of Assent.

If at any time there shall be more than one Manager, a Manager of the Company who is present at a meeting of the Managers at which action on any Company matter is taken shall be presumed to have assented to the action taken unless such Manager's dissent shall be entered into the minutes of the meeting or unless such Manager shall file its written dissent to such action with the person acting as the secretary of the meeting before the adjournment thereof or shall forward such dissent by registered mail to the Company immediately after the adjournment of the meeting. Such right to dissent shall not apply to a Manager who voted in favor of such action.

6.15 Manager Representation.

A Manager, in the course of representing and managing the Company, may use the title "Manager" or such other title or titles (including, without limitation, the title "President" or "Chief Executive Officer") as the Members may determine from time to time by affirmative vote of Members holding a majority of Member votes.

7. COMPENSATION AND EXPENSES OF MANAGER.

7.1.1 The Manager and any officers or employees of the Company, where applicable, shall be reasonably compensated by the Company according to the Manager's business judgment for their management services, unless otherwise agreed by the simple majority vote of the Members. The Company will reimburse the Manager for all reasonably necessary expenses incurred for the account of the Company, including travel and other costs incurred by the Manager in connection with the performance of management obligations.

7.1.2 As part of this Agreement, the Company requires that each Member and/or Manager pay for his or her own expenses when conducting business for the Company out of his or her own funds when the Company is not solvent. These expenses will then be allowed as UPE (Unreimbursed Personal Expenses) on the Member's and/or Manager's federal and state income tax return.

8. RIGHTS AND RESTRICTIONS OF MEMBERS.

8.1 Purpose of Restrictions.

In this Operating Agreement there are certain restrictions on a Member and a Manager's authority and ability to sell and transfer membership interests. Said restrictions are not intended as a penalty but rather are included to preserve and protect the Company's capital and management relationships to the benefit of all Members and Managers.

8.2 Restrictions on Members.

No Member, in the capacity as such, shall do any of the following without the express written consent or vote of all Members:

8.2.1 Borrow or lend money on behalf of the Company;

8.2.2 Borrow money from the Company;

8.2.3 Lend money to the Company;

8.2.4 Purport to or sell, mortgage, lease, or otherwise dispose of or encumber property of the Company;

8.2.5 Sell, assign, pledge or mortgage a Member's Interest in the Company, except as otherwise provided in Section 15;

8.2.6 Purchase any real estate or equipment on behalf of the Company;

8.2.7 Exercise or represent to any third party that such Member has the right to exercise any of the powers of the Manager described in this Agreement.

8.3 Admission of New Members.

New Members may be admitted to the Company only upon the written consent of all of the existing Members and only if such new member is a Qualified Person.

9. MEETINGS.

9.1 Annual Meetings.

The Annual Meeting of the Members shall be held at the time and place designated in writing by the Manager. Should the date of the annual meeting fall upon a legal holiday, then the annual meeting shall be held at the same time and place on the next day that is not a legal holiday.

9.2 Special Meetings.

Special Meetings of the Members may be called at any time by any Manager of the Company or by Members holding at least fifty percent (50%) of the outstanding membership interest by delivering written notice of such meeting to the Manager.

9.3 Voting Rights.

For the purpose of approving or taking action required or permitted to be taken or approved by the Members under this Agreement, except as otherwise required by Chapter 29, Members shall be entitled to vote in proportion to their percentages of membership interest (as set forth in Schedule "A", attached hereto and incorporated herein by reference), where such membership interest include voting rights with respect to the matter or matters at hand. Moreover, if applicable, where the rights of any differing class of membership interest not having voting rights with respect to the matter or matters at hand, if the matter to be voted on would materially alter or adversely affect such non-voting membership interest, such affected Members shall be entitled to vote separately on the matter in proportion to their membership interest to the extent the matter may materially alter or adversely affect such membership interest.

9.4 Notice.

The Manager of the Company shall cause written notice of the annual meeting, and any special meeting, to be given to each Member entitled to vote at the meeting, either in person, by facsimile, or by first-class mail, postage pre-paid, not less than ten (10) days nor more than sixty (60) days prior to such meeting. The notice shall specify the place, the day, and the hour of such meeting. In addition, the notice of any special meeting shall specify the purpose or purposes for which the meeting is called. Notice shall be deemed delivered by first-class mail if mailed to the address of each Member as such Member's address appears on the Company's records.

9.5 Voting Lists.

The agent having charge of the books and records for Membership Interests of the Company shall make, at least ten (10) days before each meeting of the Members, a complete list of Members entitled to vote at such meeting or any adjournment thereof, arranged in alphabetical order, with the address of each and the number of Membership Interests held by each, which list, for a period of ten (10) days prior to such meeting, shall be kept on file at the registered office of the Company and shall be subject to inspection by any Members at any time during usual business hours. Such list shall also be produced and kept open at the time and place of the meeting and shall be subject to the inspection of any Member for the duration of the meeting. The original books and records shall be prima facie evidence as to who are the Members entitled to examine such list or transfer books or to vote at any meeting of Members. Failure to comply with this Section with respect to any meeting of Members shall not affect the validity of any action taken at such meeting.

9.6 Waiver of Notice.

Any meeting of the Members, however noticed or wherever held, shall be as valid as though had at a meeting duly held after regular call and notice, if a quorum of the Members are present, and if either before or after the meeting, a simple majority of the Members, holding membership interests, entitled to vote, sign(s) a written waiver of notice or a consent to holding such meeting or an approval of the minutes thereof. All such waivers, consents or approvals shall be filed with the records or made a part of the minutes of the meeting.

9.7 Adjourned Meetings and Notice Thereof.

Any Member's meeting, Annual or Special, whether or not a quorum is present, may be adjourned from time to time by the simple majority vote of Members present in person or represented by proxy, but in the absence of a quorum no other business may be transacted at any such meeting. Other than by announcement at the meeting at which such adjournment is taken, it shall not be necessary to give any notice of any adjournment or of the business to be transacted at an adjourned meeting. However, when any Member's meeting, either annual or special, is adjourned for thirty (30) days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.

9.8 Action by the Members Meetings; Quorum; Majority.

The Members may only vote upon matters as to which the Members are authorized to take action pursuant to this Agreement or by applicable law and not subject to modification or waiver. Except as specifically otherwise provided herein, Members may vote, approve a matter or take any action by the vote of Members at a meeting, in person or by proxy or without a meeting by written consent. For any meeting of Members, the presence in person or by proxy of more than fifty percent (50%) of the membership interest at the time of the action taken constitutes a quorum for the transaction of business. Any official action taken by the Members shall require a majority vote of the Members or their fiduciary representatives, unless a unanimous vote of the membership is required elsewhere in this Operating Agreement. If any membership interest has been transferred under this Agreement to persons who are Transferee Interest Holders but who have not been admitted as Substitute Members, the voting rights associated with such Interests shall not be considered outstanding for purposes of any vote by Members under this Agreement unless by the terms of the transfer the assigned transferee retains such voting rights of the Transferring Member where the Transferring Member is entitled to assign such rights to a transferee pursuant to Section 15 of this Agreement or state law. For all purposes of this Agreement, Members shall be determined as of the date of giving notice of the meeting or as the date of the notice for proposed action by written consent without a meeting.

9.9 Action by Written Consent.

Any action may be taken by the Members without a meeting if authorized by the written consent of Members owning more than 50% of the membership interest, or such higher percentage as required under Chapter 29 or this Agreement. In no instance where action is authorized by written consent need a meeting of the Members be called or noticed.

9.10 Place of Meeting of Members/Telephone Meetings.

The First Meeting of the Members shall be held at the place designated by the Manager in the notice of the meeting, and thereafter at such place as may be designated in the notice of any meeting of the Members. Members may participate in and hold a meeting of the Members by means of conference telephone or similar communications equipment by means of which all persons participating in the meeting can hear each other and participation in a meeting pursuant to this Section shall constitute presence in person at such meeting.

9.11 Voting of Membership Interests by Certain Holders.

9.11.1 Subject to the requirement of being a Qualified Person, Membership Interests held by an administrator, executor, guardian or conservator may be voted by him so long as such Membership Interests forming a part of an estate are in the possession and form a part of the estate being served by him, either in person or by proxy, without a transfer of such Membership Interests into his name. Membership Interests standing in the name of a trustee may be voted by him, either in person or by proxy, but no trustee shall be entitled to vote Membership Interests held by him without a transfer of such Membership Interests into his name as trustee.

9.11.2 Subject to the requirement of being a Qualified Person, Membership Interests standing in the name of a receiver may be voted by such receiver, and Membership Interests held by or under the control of a receiver may be voted by such receiver without the transfer thereof into his name if authority to do so be contained in an appropriate order of the court by which such receiver was appointed.

9.11.3 Subject to the requirement of being a Qualified Person, a Member whose Membership Interests are pledged shall be entitled to vote such Membership Interests until the Membership Interests have been transferred into the name of the pledgee, and thereafter the pledgee shall be entitled to vote the Membership Interests so transferred.

9.12 Presumption of Assent to Action.

A Member who is present at a meeting of the Members at which action on any business matter is taken shall be presumed to have assented to the action taken unless his dissent shall be entered in the minutes of the meeting or unless he shall file his written dissent to such action with the Secretary of the meeting before the adjournment thereof or shall forward such dissent by registered mail to the Secretary of the Company immediately after the adjournment of the meeting. Such right to dissent shall not apply to a Member who voted in favor of such action.

10. CAPITAL CONTRIBUTIONS AND MEMBER'S INTEREST.

10.1 Initial Capital Contributions.

The initial capital contributions of the Members shall consist of the cash, property, services to be rendered, promissory note or other binding obligation to contribute cash, property or perform services. All original contributions, upon full receipt by the Company for such contributions or other binding obligations, as the case may be, shall be credited to the Members in proportion to the Member's percentage interests.

10.2 Membership Interest.

Each membership interest shall equal the percentages as agreed to in Schedule "A."

10.3 Additional Capital Contributions.

10.3.1 The Members shall contribute additional capital to the Company in proportion to their respective Percentage Interests to fund any projects that the Managers unanimously agreed, whether formally or by conduct, to undertake in such amounts and at such times as the Managers holding a majority interest shall determine. If a Member fails to make a capital contribution in the time provided in a notice to the Members, the Member shall have ten (10) days after the date set forth in the notice before the Member is in default of the Member's obligations under this Agreement.

10.3.2 The term "additional capital contributions" shall include (i) any amounts paid by any Member to the other Members pursuant to the indemnity contained in this Agreement against disproportionate funding of company liabilities; (ii) any amounts paid by a Member in respect of claims against the Company except to the extent indemnification is made by the other Members; and (iii) any amounts paid by a Member pursuant to any guaranty of Company indebtedness by such Member.

10.3.3 The Members understand that a lender may require a guarantee in order for the Company to obtain a loan. The Members agree that, if one Member guarantees a loan, all Members will guarantee the obligation. As between the Members, the guarantee obligation shall be in accordance with the Members Percentage Interests as of the date the guarantee was entered into or last modified.

10.4 Failure to Make Additional Capital Contributions.

10.4.1 If any Member fails to make an additional capital contribution within the time required by this Agreement, and such failure is not cured within the time specified here in, then such failure shall be a material default under this Agreement. Upon the occurrence of such material default, the nondefaulting Member may elect, by written notice to the Company and without the need for further notice to or consent of the defaulting Member, to make an additional capital contribution by the nondefaulting Member to the Company in exchange for the immediate issuance of an additional interest in the Company. The additional interest to the nondefaulting Member will be determined from the following formula: increased by the percentage equivalent of a fraction having as its numerator the amount of such additional capital contribution required of the defaulting Member that is made by the nondefaulting Member and having as its denominator the aggregate amount of the value of the assets as set out on the books of the Company for financial reporting purposes of the Members determined immediately after such contribution.

10.4.2 If the nondefaulting Member does not elect to reduce the defaulting Member's Percentage Interest herein, the contribution of the nondefaulting Member on behalf of the defaulting Member shall be treated as a loan to the defaulting Member payable from any distributions, or expense reimbursements made to the defaulting Member until such time as the loan shall be repaid. If the loan is not repaid by the time the defaulting Member liquidates such Member's interest in the Company, the defaulting Member shall pay the amount in cash to the nondefaulting Member. The loan shall bear interest at ten percent (10%) per annum compounded annually or the maximum rate allowed by law if less.

10.5 Withdrawals of Capital.

A Member shall not be entitled to withdraw any part of the Member's capital or to receive any distribution from the Company, except as specifically provided in this Agreement, and no Member shall be entitled to make any capital contribution to the Company other than the capital contributions provided for herein.

10.6 No Interest, No Priority and No Liability.

No Member shall be entitled to receive any interest on such Member's capital contributions. No Member shall be entitled to any priority over any other Member in any distributions from the Company. Members shall not be personally responsible for any debts or liabilities of the Company.

10.7 Member Loans.

Any Member or an affiliate may make a loan to the Company requested by the Managers to the extent required to pay the Company's operating expenses, including debt service. Any such loan shall bear interest at ten percent (10%) per annum and provide for the payment of principal and any accrued but unpaid interest in accordance with the terms of the promissory note evidencing such loan, the loan shall not be convertible into any additional percentage interest in the Company and shall provide for repayment no later than upon dissolution of the Company.

11. NO CAPITAL ACCOUNTS.

As long as the Company shall be taxed as an S corporation separate capital accounts shall not be maintained by the Company for each Member.

12. PROFITS AND LOSSES.

12.1 Net Profits and Losses.

Net profits and net losses shall be allocated and credited to each Member in proportion to their respective membership interests.

12.2 Federal Income Tax.

It is the intent of this Company and its Members that this Company shall be taxed as an S corporation pursuant to Code Section 1362 (a) unless an alternative taxation selection by a unanimous vote of the members is made.

13. INTEREST AND COMPENSATION.

Members will not be credited with interest on their contributions, and unless a simple majority of the other Members agree, Members, in their capacity as Members, shall not be entitled to salary for services rendered on behalf of the Company.

14. DISTRIBUTIONS TO MEMBERS.

14.1 Allocations of Net Profit and Net Loss.

Net profit and net loss for each fiscal year (or portion thereof), as well as items of Company income, loss deduction and credit, shall be allocated among the Members in accordance with the Members' percentage interests in the Company and in accordance with Code Section 1366 and the Regulations thereunder.

14.2 Change in Percentage Interests.

In the event any Member's Percentage Interest changes during a fiscal year for any reason, including without limitation, the transfer of any interest in the Company, such allocations of taxable income or loss shall be adjusted as necessary to reflect the varying interests of the Members during such year consistent with Subchapter S of Subtitle A of the Code.

14.3 Intent of Allocations.

It is the intent of the Company and the Members that the allocation of Net Income and Net Loss to the Members pursuant to this Agreement shall be consistent with the provisions of Code section 1366 dealing with the allocation of net income and net loss to S Corporation shareholders. It is the further intent of the Company, but subject to Manager discretion, that the Manager shall, as the Company is able and as soon as possible after the filing of the company's tax return, distribute to each member an amount equal to that Member's share of net profits as shown on the tax return multiplied by the highest marginal income tax rate applicable to persons under the Code and reduced by any distributions received by the Member.

14.4 Distribution of Assets by the Company.

14.4.1 Subject to applicable law and any limitations contained elsewhere in this Agreement, the Managers may elect, from time to time, to distribute distributable cash to the Members, which distributions shall be made concurrently to the Members in proportion to their percentage interests. All distributions to the Members of their pro rata share of distributable cash or other property shall be made to the Members at the same time in proportion to their percentage interests.

14.4.2 All such distributions shall be made only to the persons who, according to the books and records of the Company, are the holders of record of the membership interests in respect of which such distributions are made on the actual date of distribution. Neither the Company nor any Manager shall incur any liability for making distributions in accordance with this section.

14.5 Form of Distribution.

A Member, regardless of the nature of the Member's capital contribution, has no right to demand and receive any distribution from the Company in any form other than money. No Member may be compelled to accept from the Company a distribution of any asset in kind in lieu of a proportionate distribution of money being made to other Members except upon a dissolution and winding up of the Company.

14.6 Restriction on Distributions.

The Company shall not make a distribution to a Member to the extent that, at the time of the distribution, after giving effect to the distribution, all liabilities of the Company other than liabilities to Members on account of their membership interests and liabilities to creditors for which recourse of creditors is limited to specified property of the Company, exceed the fair value of the Company's assets, except that the fair value of property that is subject to a liability for which the recourse of creditors is limited shall be included in the assets of the Company only to the extent that the fair value of that property exceeds that liability. In determining whether to make a Company distribution, the Manager(s) is entitled to rely on information, opinions, reports and statements or other data prepared or presented by any person to the Manager that the Manager believes in good faith to be reliable and competent in the matters presented.

14.7 Return of Distributions.

Except for distributions made in violation of the Act or this Agreement, no Member shall be obligated to return any distribution to the Company or pay the amount of any distribution for the account of the Company or to any creditor of the Company. The amount of any distribution returned to the Company by a Member of paid by a Member for the account of the Company or to a creditor of the Company shall be added to the account or accounts from which it was subtracted when it was distributed to the Member.

14.8 Post-Termination Distributions.

Upon termination of the S Election, the Members agree to cause the distribution from the Company during the post-termination transition period of amounts at least equal to the accumulated adjustments account in accordance with Code Section 1371(e)(1), or any successor provision.

15. RESTRICTIONS ON TRANSFER OF A MEMBER'S INTEREST.

15.1 Restrictions on Transfer.

No Member or successor thereto may transfer, and no person may acquire, the beneficial ownership of any membership interest if such transfer would cause the Company's S Election to terminate. Specifically, no transfer may be made to, and no acquisition may be made by and person other than a Qualified Person as defined in Section 2.17. Any attempted transfer in violation of this Section shall be null and void, and of no force or effect.

15.2 Rights of First Refusal.

Except as specifically provided herein, no Transferring Member shall voluntarily or involuntarily sell, transfer, encumber, assign or otherwise dispose of all or any part of the Member's membership interest in the Company to any transferee without first offering to sell the membership interest to the Company. The Transferring Member shall send to the Company a proposed written offer executed by the potential transferee stating (1) the exact interest to be purchased by the transferee, (2) the amount of the purchase price, (3) the terms for the purchase and (4) the qualifications of the transferee, including being a Qualified Person, to own a membership interest in the Company.

Within thirty (30) days after receipt of the written offer by the Company, the Company may purchase the interest of the Transferring Member on the terms set forth in the offer by the transferee. The exercise of the option by the Company shall be determined by the vote of the Manager.

Within five (5) days of the Company's failure to exercise any right of first refusal described in this Section 15, the Manager of the Company shall forward to each of the other Members of the Company a copy of the transferee's written offer together with a statement that the Company has elected not to exercise its right of first refusal. The other Members shall then have the right to purchase the transferee's written offer. Any Member desiring to acquire part or all of the membership interest shall deliver to the Manager of the Company a written election to purchase the membership interest or a specified portion of such membership interest within thirty (30) days of the date of the Company's notice. If the Company receives notice from a Member electing to purchase in the aggregate more than the Transferring Member's interest, each purchasing Member shall have priority, up to the amount of the interest specified in his or her notice, to purchase such proportion of the interest as his or her Interest bears to the total membership interest of the Company held by Members electing to purchase.

If any Member elects to purchase as specified above, the Manager of the Company shall notify each purchasing Member of the Transferring Member's interest as to which his or her election was effective within fourteen (14) days of the expiration of the option period provided to Members described herein. Such Members shall meet the terms and conditions of the purchase within twenty-one (21) days after receipt of the Manager's notification of the Transferring Member's interest as to which such Member's election was effective.

If the Company and the Members do not exercise the right of first refusal as to the entire interest of the Transferring Member described in the written offer, the Transferring Member may sell, transfer, assign, encumber or otherwise dispose of the membership interest to the transferee specified in the notice on the exact terms specified in the notice. However, if the Transferring Member does not sell, transfer, assign, encumber or otherwise dispose of the membership interest to the transferee on those exact terms within sixty (60) days after expiration of the time for the Company and Members to exercise the right of first refusal, the Transferring Member must, before disposing of the membership interest, re-offer the membership interest to the Company and the Members in the manner as set forth in this Section 15. If all of the Members of the Company, other than the Transferring Member, do not approve of the proposed sale, transfer, assignment, or encumbrance by simple majority written consent, the transferee of the membership interest shall have no right to vote or participate in the management of the business and affairs of the Company or to become a Member. The transferee, unless simple majority written consent is obtained, is only entitled to receive the share of profits or other compensation by way of income, and the return of contributions to which the Transferring Member would otherwise be entitled.

No Transferring Member or any transferee may exercise any voting rights of a Member except upon admittance by the non-transferring Members of the transferee as a Substitute Member. No Transferring Member may sell, transfer, assign, encumber or otherwise dispose of less than all of such Member's interest.

15.3 Rights of Transferee.

In the event the sale, transfer, assignment or encumbrance is approved by simple majority written consent of the remaining Members, the transferee shall be admitted to all the rights and powers of a Member, and be subject to all the restrictions and liabilities of the Transferring Member. If not approved by all remaining Members the transferee shall have no right to participate in the management of the business. However, the Transferring Member shall not be released from liability to the Company.

15.4 Conditions to Transfer.

Notwithstanding the provisions of Sections 15.2 and 15.3 above, no Member shall have the right, voluntarily or involuntarily, to sell, assign, pledge, mortgage, encumber or grant any security interest in or otherwise transfer all or any portion of any membership interest, and no such purported transfer need be recognized by the Company, unless all of the following requirements are satisfied:

15.4.1 The transfer shall not of itself cause the Company to be in default under any indebtedness of the Company; and shall not terminate the Company's S Election (unless all members shall unanimously agree to change the Company's taxation.)

15.4.2 The Transferring Member shall deliver to the Company at the Company's request an opinion in form and substance and from legal counsel reasonably acceptable to the Manager stating that such transfer does not involve a non-Qualified Person and does not violate any federal or state securities law, and the transferee shall deliver such additional document respecting the transferee's investor suitability and other legal or investment matters as the Manager may reasonably require; and provided further that the Company shall have no duty to participate in, cause or pay for any registration or qualification procedures under federal or state securities laws;

15.4.3 The Transferring Member shall deliver to the Company a fully executed written agreement of assignment that sets forth the name, address and taxpayer identification number of the transferee, who must be a Qualified Person, and the terms of such transfer, provided such terms shall not conflict with any provision of this Agreement;

15.5 Admission of Substitute Members.

Notwithstanding the provisions of Sections 15.2 and 15.3 above, no transferee shall become a Substitute Member unless the following additional conditions are met:

15.5.1 The transferee executes, acknowledges and delivers to the Company a written agreement stating that such transferee is a Qualified Person and agrees to be bound by the provisions of this Agreement and executes such other instruments as the Manager deems necessary or appropriate for admission as a Substitute Member;

15.5.2 Each transferee reimburses the Company for all reasonable accounting, legal and other expenses incurred by the Company regarding the transfer and such admission.

15.6 Permitted Transfers.

Any Member may, notwithstanding Section 15.2 may transfer all or part of the Member's interest in the Company:

15.6.1 To the Company upon terms acceptable to all Members, which shall include such interest being retired so as not to violate the S corporation rules;

15.6.2 To any other existing Member upon terms acceptable to the Transferring Member and the acquiring Member, subject to the approval of the Manager and approval by simple majority written consent of the remaining Members; or

15.6.3 To a revocable living trust for the benefit of the Member and/or the Member's spouse or family members, to the extent allowed by local law. The Trustee shall hold such Member's membership interest subject to the provisions of this Agreement.

15.6.4 To the successor Trustee of a Member's revocable living trust for the benefit of the Member and/or the Member's spouse or family members, to the extent allowable by local law. The successor trustee shall hold such Member's membership interest subject to the provisions of this Agreement.

15.7 Transfer Upon Death of Member.

Within a period beginning with the death of any Member and ending one hundred eighty (180) days following the qualification of the decedent's executor or administrator, the remaining Member(s) shall have the option to purchase all or any portion of the decedent's membership interest in the Company at the price and on the terms provided in this Agreement. If less than all the remaining members wish to purchase, the interests shall be allocated according to each participant's member's pro rata ownership in the Company. Any surviving Member shall exercise the option hereunder, if at all, by a writing delivered to the personal representative of the deceased Member within the time period set forth in this Section 15.7, subject to the approval of the Manager and approval by simple majority written consent of the remaining Members.

15.8 Triggering Events - Involuntary Transfer.

If any of the triggering events listed below occur as to any Member, the Company or the other Members may purchase all of the interest owned by the Member. This may be triggered if any of the following events occur:

15.8.1 A Member is adjudicated as bankrupt, either voluntary or involuntary;

15.8.2 A Member makes an assignment for the benefit of creditors;

15.8.3 A Member's interest is subject to a charging order. Pursuant to WS 17-29-503, a charging order is the sole remedy available to any judgment creditor of a Member with respect to the income, assets, property or other rights the Member may have in the Company. It shall be in the Manager's sole discretion as to how any such charging order shall be dealt with, unless otherwise directed by law; however, in no event shall either the charging order or the Manager's determination as to the disposition of the handling of such charging order afford the judgment creditor any rights beyond the rights as an assignee of the applicable Member's membership interest; or

15.8.4 The execution of any property settlement agreement between any Member and the Member's spouse, or the entry of any decree of divorce or separate maintenance by a court of competent jurisdiction, wherein the spouse is awarded any membership interest or a trust is imposed on said membership interest for the benefit of said spouse, then to the extent said Interest is transferred, or to the extent said interest is subject to the imposition of any such trust or lien, there shall be deemed a triggering event as to the interest so affected.

When a triggering event occurs, the Company shall give written notice to the Member or his or her representative of its option to purchase the interest and the terms as set forth in this Section 15.

15.9 Valuation.

The purchase price for any membership interest to be purchased under this Agreement shall be as agreed between or among the Members and the selling Member or the personal representative of any deceased Member. In the event the parties do not agree within thirty (30) days of the later of (a) the date giving rise to the option to purchase, or (b) the date of timely exercise of such option, the parties shall select a business appraiser, business broker or independent CPA ("Appraiser") mutually satisfactory to each of them, whose determination of value (determined net of ordinary and reasonable costs of sale and with consideration of reasonable discounts for minority interest or lack of control) shall constitute the value of the membership interest. In the event the parties cannot mutually agree on the selection of a single Appraiser within ten (10) days of expiration of the thirty-(30) day period described above, each party, within ten (10) days thereafter, shall select an Appraiser, and the Appraisers so selected shall mutually select a third. The three Appraisers shall then value the membership interest net of ordinary and reasonable costs of sale. The value of the membership interest shall equal the average of the appraisals. The parties shall separately bear the costs of the Appraisers which they select, respectively, and shall share equally the cost of the independent Appraiser, if applicable.

15.10 Payment.

The consideration for any membership interest transferred under this Agreement shall be paid to the Transferring Member or the Transferring Member's personal representative or successor, as the case may be.

If the event leading to the purchase is the death of any Member, the decedent's personal representative shall apply for and obtain any necessary court approval or confirmation of the sale of the decedent's membership interest and the Company or the surviving Members shall file the necessary proofs of death and collect the proceeds of any outstanding policies of insurance on the life of the decedent owned by the Company or such Member. If the purchase price is fully funded by proceeds of any such insurance policies, the purchaser shall pay the purchase price. If the purchase price is not fully funded by insurance on the life of the decedent Member, each purchaser shall pay the purchase price in cash up to the full amount of the proceeds of any such insurance policies of which that Member is the policy owner, and shall pay any

remaining portion of the purchase price in accordance with the terms of the following subparagraph.

The terms for payment of the purchase price of a membership interest (other than amounts by life insurance proceeds as provided in the preceding paragraph) shall be paid pursuant to the terms of a Promissory Note (herein the "Note") to be executed by the Company or by the Member or Members, as the case may be. The Note shall provide for sixty (60) equal monthly payments of principal and interest accruing against the balance of the Purchase Price at the Federal Reserve's Kansas City prime interest rate plus one percent (1%) from the date of the Note. The Note shall be dated as of the date the purchase is made. The Note shall provide that the maker may prepay all or any portion of the unpaid principal balance and accrued interest at any time, without penalty. The Note shall include the provision that the entire unpaid principal balance and all accrued interest shall become immediately due and payable upon the happening of any of the following conditions:

15.10.1 Adjudication of bankruptcy of the maker of the Note;

15.10.2 Voluntary or involuntary petition by or on behalf of the maker of the Note for arrangement or reorganization, or for the protection of creditors and the debtor, under the Bankruptcy Act;

15.10.3 Upon default in payment of any of the terms by the maker of amounts required to be paid under the Note;

15.10.4 In the event the sale is to a Member, upon the sale of all, or substantially all, of the membership interest in the Company by the Member;

15.10.5 If the sale is to the Company, upon the sale of the Company or all or substantially all of the assets of the Company.

15.11 Governmental Approvals.

The Company agrees to apply for and use its best efforts to obtain all governmental and administrative approvals required, if any, in connection with the purchase and sale of membership interest under this Agreement. The Members agree to cooperate in obtaining the approvals and to execute any and all documents that may be required to be executed by them in connection with the approvals. The Company shall pay all costs and filing fees in connection with obtaining the approvals.

15.12 Withdrawal By Member.

15.12.1 Notice of Withdrawal. A Member may not withdraw, retire or resign as a Member unless, after receiving prior written notice requesting same, the Members shall have unanimously consented thereto in writing, which consent may be granted or denied in the Members' sole and absolute discretion.

15.12.2 Distribution to Withdrawing Member. No distribution shall be made to a withdrawing Member unless all liabilities of the Company have been paid or unless the Company has assets sufficient to pay such liabilities. No Member shall have the right to demand or receive property other than cash in return for its percentage interest, and no Member, upon withdrawal, shall have priority over any other Member as to its percentage share of Company profits.

15.13 Specific Enforcement.

In view of the inadequacy of money damages, if any Member or other person shall fail to comply with the provisions of this Section, the Company and any other Member shall be entitled, to the extent permitted by applicable law, to injunctive relief in the case of the violation, or attempted or threatened violation, by any such Member or other person of any of the provisions of this Section, or to a decree compelling specific performance by such Member or other person of any of such provisions, or to any other remedy legally allowed to them.

16. SECURITIES ISSUES.

16.1 Prohibited "Market" Transfers.

Each Member hereby covenants and agrees with the Company for the benefit of the Company and all other Members that (a) it is not currently making a market in membership interest; (b) it will not transfer any membership interest upon an established securities market or a secondary market (or the substantial equivalent), and (c) in the event any regulations, revenue rulings, or other pronouncements treat any or all arrangements which facilitate the selling of a membership interest which are commonly referred to as "Matching Services" as being a secondary market or the substantial equivalent thereof, the Member will not transfer any membership interest through a Matching Service that is not approved in advance by the Company.

16.2 Securities Law Legend.

Each Member hereby agrees that the following legend may be placed upon any counterpart of this Agreement, or any other document or instrument evidencing ownership of membership interest in this Company:

THIS CERTIFICATE HAS NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933. THE SECURITIES REPRESENTED BY THIS CERTIFICATE HAVE BEEN ACQUIRED FOR INVESTMENT, AND NOT WITH A VIEW TO, OR IN CONNECTION WITH, THE SALE OR DISPOSITION THEREOF. THE LIMITED-LIABILITY COMPANY WILL NOT TRANSFER THIS CERTIFICATE UNLESS (I) THERE IS AN EFFECTIVE REGISTRATION COVERING THE SHARES REPRESENTED BY THIS CERTIFICATE UNDER THE SECURITIES ACT OF 1933 AND ALL APPLICABLE STATE SECURITIES LAWS, (II) IT FIRST RECEIVES A LETTER FROM AN ATTORNEY, ACCEPTABLE TO THE MEMBERS OR ITS AGENTS, STATING THAT IN THE OPINION OF THE ATTORNEY THE PROPOSED TRANSFER IS EXEMPT FROM REGISTRATION UNDER THE SECURITIES ACT OF 1933 AND UNDER ALL APPLICABLE STATE SECURITIES LAWS, (III) THE TRANSFER IS MADE PURSUANT TO RULE 144 UNDER THE SECURITIES ACT OF 1933.

17. DISSOLUTION AND LIQUIDATION.

17.1 Events Requiring Dissolution.

The Company must be dissolved upon the occurrence of any of the following events:

17.1.1 The unanimous written consent of all Members; or

17.1.2 The death, retirement, resignation, expulsion, bankruptcy or dissolution of a Member, or the occurrence of any other event which terminates a Member's continued membership in the Company, unless a simple majority in interest of the remaining Members consent in writing to continue the business of the Company, provided there is at least one (1) remaining Member.

17.2 Liquidation.

Upon the occurrence of any event requiring dissolution of the business of the Company and the Company is not continued by the consent of a simple majority of the remaining Members, the Manager of the Company shall immediately execute and deliver for filing Certificate of Dissolution to the Secretary of State. Upon filing the Certificate of Dissolution the Company shall cease to carry on its business and shall wind up its affairs and liquidate.

17.3 Distribution of Assets.

During the liquidation of the Company, the Members shall continue to share net profits and losses in the same proportions as before dissolution. In settling accounts after dissolution, the proceeds from the liquidation of the Company's assets shall be applied as follows:

17.3.1 To pay off other creditors of the Company, in order of remaining priority, as provided by law;

17.3.2 To the Members first with respect any remaining debts owed to Members for their contributions and then to Members according to their proportionate membership interest.

17.4 Revocation of Voluntary Dissolution Proceedings.

At any time before the issuance of a certificate of dissolution by the Secretary of State, the Company may revoke voluntary dissolution proceedings by the written consent of all of its Members.

17.5 Articles of Dissolution.

If voluntary dissolution proceedings have not been revoked, then, when all liabilities and obligations of the Company have been paid or discharged, or adequate provision has been made thereof, or in case its property and assets are not sufficient to satisfy and discharge all the Company's liabilities and obligations, then when all the property and assets have been applied so far as they will go to the just and equitable payment of the Company's liabilities and obligations, and all of the remaining property and assets of the Company have been distributed to its Members according to their respective percentage membership interest, articles of dissolution shall be executed on behalf of the Company by an authorized Member and filed with the Secretary of State in accordance with the Act.

17.6 Qualified Income Offset.

To the extent a Member shall have a negative capital account balance, there shall be a qualified income offset, as set forth in Treasury Regulation 1.704-1-(b)(2)(ii)(d).

18. INDEMNIFICATION.

18.1 Indemnification of Member, Employee, or Agent: Proceeding Other Than by Company.

The Company shall indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit, or proceeding, whether civil, criminal, administrative or investigative, except an action by or in the right of the Company, by reason of the fact that such person is or was a Member or Manager, employee or agent of this Company, or is or was serving at the request of this Company as a Manager, Director, officer, employee or agent of another limited liability company, corporation, partnership, joint venture, trust or other enterprise, against expenses, including attorneys' fees and costs, judgments, fines and amounts paid in settlement actually and reasonably incurred by this person in connection with the action, suit or proceeding if this person acted in good faith and in a manner which this person reasonably believed to be in or not opposed to the best interests of this Company, and with respect to a criminal action or proceeding, had no reasonable cause to believe their conduct was unlawful. The termination of any action, suit or proceeding by judgment, order, settlement, or conviction or upon a plea of nolo contendere or its equivalent, does not, of itself, create a presumption that the person did not act in good faith and in a manner which this person reasonably believed to be in or not opposed to the best interests of the Company, and that, with respect to any criminal action or proceeding, this person had reasonable cause to believe that their conduct was unlawful.

18.2 Indemnification of Member, Employee or Agent: Proceeding by Company.

The Company shall indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending or completed action or suit by or in the right of the Company to procure a judgment in its favor by reason of the fact that such person is or was a Member or Manager, employee or agent of the Company, or is or was serving at the request of this Company as a Member or Manager, employee or agent of another limited liability company, corporation, partnership, joint venture, trust or other enterprise against expenses, including amounts paid in settlement and attorneys' fees and costs actually and reasonably incurred by this person in connection with the defense or settlement of the action or suit if this person acted in good faith and in a manner which this person reasonably believed to be in or not opposed to the best interests of the Company. Indemnification may not be made for any claim, issue or matter as to which this person has been adjudged by a court of competent jurisdiction, after exhaustion of all appeals therefore, to be liable to the Company, unless and only to the extent that the court in which the action or suit was brought or other court of competent jurisdiction determines upon application that in view of all the circumstances of the case, the person is fairly and reasonably entitled to indemnity for such expenses as the court deems proper.

18.3 Indemnity if Successful.

To the extent that a Member, Manager, employee or agent of the Company has been successful on the merits or otherwise in defense of any action, suit or proceeding described in Section 18.1 or 18.2, or in defense of any claim, issue or matter therein, the Company shall indemnify the Member, Manager, employee or agent against expenses, including attorneys' fees, actually and reasonably incurred in connection with the defense.

Indemnity shall not apply where a final adjudication determines that the Member, Manager, employee or agent did not act in good faith and in a manner which such a person reasonably believed to be in or not opposed to the best interests of the Company, and that, with respect to any criminal action or proceeding, this person had reasonable cause to believe that their conduct was unlawful, or where it is established that their acts or omissions involved gross negligence, intentional misconduct or fraud.

18.4 Expenses.

Any indemnification under Section 18.1 and 18.2, unless ordered by a court or advanced by the Company, must be made by this Company only as authorized in the specific case upon a determination that indemnification of the Member, Manager, employee or agent is proper in the circumstances. The determination must be made by a simple majority vote of the Members, disregarding the vote of any Member or Manager who was a party to the act, suit or proceeding.

18.5 Amendments.

No amendment, modification or repeal of this Article or any provision hereof shall in any manner terminate, reduce or impair the right of any past, present or future Indemnities to be indemnified by the Company, nor the obligation of the Company to indemnify any such Indemnities, under and in accordance with the provisions of the Section as in effect immediately prior to such amendment, modification or repeal with respect to claims arising from or relating to matters occurring, in whole or in part, prior to such amendment, modification or repeal, regardless of when such claims may arise or be asserted.

19. COMPANY RECORDS AND REPORTS.

19.1 Books and Records.

The Manager shall cause the Company to keep the following:

19.1.1 Complete books and records of account in which shall be entered fully and accurately all transactions and other matters relating to the Company. The Company's books and records shall be kept in accordance with accounting methods followed for federal income tax purposes;

19.1.2 A current list of the full name and last known business or residence address of each Member set forth in alphabetical order listing the Member's capital contribution to the Company and membership interest owned;

19.1.3 A copy of the Articles of Organization and all amendments thereto and all filings by the Company in Wyoming and other states; and

19.1.4 A copy of any then-effective written Operating Agreement.

19.2 Location of Books and Records.

All such books and records shall be maintained at the principal executive office of the Company and the records stated in 19.1.3 and any other records required by the State of Wyoming shall be kept at the registered office of the Company. In each location, such books and records shall be available for inspection and copying by, and at the expense of, the Members, or their duly authorized representatives, during reasonable business hours.

19.3 Title to Property.

All real and personal property owned by the Company shall be owned by the Company as an entity. No Member shall have any ownership interest in such property in such Member's individual name or right unless separately authorized in an agreement between the Company and such Member. Each Member's interest in the Company shall be personal property for all purposes.

19.4 Foreign Qualification.

In the event the Company shall seek to conduct business in any State other than the one it was organized in, the Manager shall cause the Company to comply with all requirements necessary to qualify the Company as a foreign limited liability company in that jurisdiction. At the request of the Manager, each Member shall execute, acknowledge, swear to, and deliver all certificates and other instruments conforming with this Operating Agreement that are necessary or appropriate to qualify, continue, and terminate the Company as a foreign limited liability company in all such jurisdictions in which the Company may conduct business.

19.5 Internal Governance.

In the event pursuant to 19.4 above the Company shall seek to conduct business in any state other than the one in which it was organized, the internal governance of this Company to, including, but not limited to, any and all related rules and regulations shall be governed by the laws of the State of Wyoming and not any foreign qualified state which the Company may conduct business in.

20. CONFIDENTIALITY.

20.1 Members' Duty of Confidentiality.

Each Member, whether acting as a Member or as a Manager:

- (1) Shall maintain the confidentiality of Confidential Information (as defined in 20.2);
- (2) Except as required in conducting the internal affairs of the Company, shall not disclose Confidential Information to any third party without the affirmative vote of Members holding a majority of Member votes (exclusive of the Member votes of the Member desiring to make the disclosure);
- (3) Shall make copies of documents and other materials containing Confidential Information only for the benefit of the Company;

- (1) Shall use Confidential Information only for the benefit of the Company; and
- (2) Promptly after ceasing to be a Member, shall return to the Company all written and/or electronic documents and all other materials containing Confidential Information.

20.2 Confidential Information Definition.

For purposes of this Agreement, Confidential Information means:

- (1) The terms of this Agreement; provided, that a Member may disclose these terms on a confidential basis to his or her spouse and professional advisers;
- (2) Information that the Company maintains in confidence and that has actual or potential economic value to the Company because it is not generally known to others and is not readily ascertainable by them, which information shall include:
 - (a) Financial information relating to the Company and to the Members;
 - (b) Information relating to Company sales, marketing, business plans and strategies;
 - (c) Information concerning the development, design and manufacture of Company products and concerning the method of providing Company services;
 - (d) Information in Company human resource files and similar files relating to Company Members and employees;
 - (e) Information entrusted to the Company in confidence by third parties; and
 - (f) Information reasonably designated by the Members as Confidential Information.

20.3 Duty of Confidentiality Exceptions.

This Section shall not apply to information which enters (or has previously entered) the public domain through no fault of a Member or the disclosure of which is required by court order from a court of competent jurisdiction.

20.4 Binding Effect.

This Section shall bind each Member even after the Member ceases to be a Member. Subject to any contrary arrangement with a third party, the requirements of this Section shall terminate upon the termination of the legal existence of the Company.

21. GENERAL PROVISIONS.

21.1 Agreement to Perform Necessary Acts.

Each Member agrees to perform any further acts and execute and deliver any documents that may be reasonably necessary to carry out the provisions of this Agreement.

21.2 Amendments.

The provisions of this Agreement may not be waived, altered, amended or repealed, in whole or in part, except with the written consent of a simple majority of the Members provided, however, this Agreement shall not be amended without the consent of each Member adversely affected if such amendment would alter the proportionate interest of a Member.

21.3 Successors and Assigns.

This Agreement shall be binding on, and shall inure to the benefit of, the Members and their respective heirs, legal representatives, successors and assigns.

21.4 Validity of Agreement

It is intended that each Section of this Agreement shall be viewed as separate and divisible, and in the event that any Section shall be held to be invalid, the remaining Sections shall continue to be in full force and effect.

21.5 Notices.

All notices, requests, demands, and other communications under this Agreement shall be in writing and shall be deemed to have been duly given on the date of service if served personally on the party to whom notice is to be given, or within seventy-two (72) hours after mailing if mailed to the party to whom notice is to be given, by first-class mail, registered or certified, postage prepaid, and properly addressed to the party at his address set forth on the signature page of this Agreement, or other address that any party may designate by written notice to the others.

21.6 Governing Law.

This Agreement and all questions relating to its validity, interpretation, performance and enforcement (including, without limitation, provisions concerning limitations of action), shall be governed by and construed in accordance with the laws of the State of Wyoming. The Manager shall make all filings and disclosures required by, and shall otherwise comply with, all applicable laws. The Manager shall execute and file in the appropriate records any assumed or fictitious name certificates and other documents and instruments as may be necessary or appropriate with respect to the formation of, and conduct of business by, the Company.

21.7 Binding Arbitration and Appraisers.

In the event of any disputes arising among any of the Members, such disputes shall be resolved by vote of the Members. In the event of a deadlock in such vote, the dispute will be resolved by binding arbitration, pursuant to the rules and regulations of the American Arbitration Association, with venue to be had in Teton County, Wyoming. In the event of mixed questions of valuation and other disputes, or if the Members cannot agree whether the dispute involves solely valuation issues or other issues, then such dispute shall be submitted to binding arbitration in accordance with this Section. The Members expressly and unconditionally waive their right to resolve disputes between or among them by litigation.

21.8 Counterparts. Gender and Number.

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. As used in this Agreement, the masculine, feminine, and neuter gender, and the singular or plural number shall be considered to include the others whenever the context so indicates.

21.9 Attorneys' Fees.

If any party brings an action or proceeding (including arbitration or appraisal dispute resolution, any complaint, cross-complaint, counterclaims, or third-party claim) against any other party by reason of a default by the other party or otherwise arising out of this Agreement, the non-prevailing party shall pay to the prevailing party in such action or proceeding all of the prevailing party's costs and expenses of suit (including the costs and expenses of enforcing any judgment or settlement), including reasonable attorneys' fees and costs, which shall be payable whether or not such action is prosecuted to judgment. "Prevailing party" within the meaning of this Section includes a party who dismisses an action for recovery hereunder in exchange for payment of the sums allegedly due, performance of covenants allegedly breached, or consideration substantially equal to the relief sought in the action.

21.10 Complete Agreement.

This Agreement, all Exhibits referenced herein, and the Articles of Organization, together constitute the complete and exclusive statement among the Members with respect to the subject matter contained therein. This Agreement, all exhibits referenced herein, and the Articles of Organization, together supersede all prior agreement by and among the Members with respect to the subject matter of this Agreement.

21.11 Asset Protection.

With regard to asset protection, the Members herein agree that this Operating Agreement shall be governed to the maximum extent of protection from creditor claims allowed by Wyoming Law. Specifically, the Operating Agreement shall be governed by WS 17-29-503, which provides the charging order as "the exclusive remedy by which a person seeking to enforce a judgment against a judgment debtor, including any judgment debtor who may be the sole member, dissociated member or transferee, may, in the capacity of the judgment creditor, satisfy the judgment from the judgment debtor's transferable interest or from the assets of the limited liability company."

21.12 Construction.

Notwithstanding anything in this Agreement to contrary, (a) all membership interests shall be treated as stock equivalents, (b) each membership interest has the same economic rights as another, (c) no membership has distribution rights superior to or inferior to that of any other membership interest, and (d) this Agreement shall be construed in a manner that is consistent with an entity intending to maintain its S Election, unless and until such time as the Members unanimously elect to terminate the Company's S Election.

IN WITNESS WHEREOF, the undersigned Manager of the Company does hereby certify that this Agreement was duly adopted by a unanimous vote of all the Members of this Company at the Organization Meeting held on June 5, 2019.

[REDACTED], Managing Member,

Michael Anthony Brait, Jr., Managing Member,

Stone Vardon Hazlett, Managing Member,

[REDACTED], Managing Member,

by and for

R.A.I.N TECHNOLOGIES LLC

OPERATING AGREEMENT OF LIMITED LIABILITY COMPANY

Member Signature Page

IN WITNESS WHEREOF, the parties, in their capacities as Members by themselves or by their duly authorized representatives, in their acceptance of the above terms and conditions, have duly signed this Agreement.

_____	_____
JARRID CAVANAUGH , Member	Date

_____	_____
MICHAEL ANTHONY BRAIT, JR. , Member	Date

_____	_____
STONE VARDON HAZLETT , Member	Date

_____	_____
BROCK WILLIAM RICE , Member	Date

OPERATING AGREEMENT OF LIMITED LIABILITY COMPANY

SCHEDULE A

Membership and Interests

<u>MEMBER'S NAME</u>	<u>MEMBERSHIP INTEREST</u>
JARRID CAVANAUGH	22%
MICHAEL ANTHONY BRAIT, JR.	34%
STONE VARDON HAZLETT	22%
BROCK WILLIAM RICE	22%

OPERATING AGREEMENT OF LIMITED LIABILITY COMPANY

SCHEDULE B

Statement and Taxation

This Limited Liability Company shall be taxed as an S corporation.

The annual accounting period of this Limited Liability Company shall be a calendar year.

The method of accounting of this Limited Liability Company shall be cash.

OPERATING AGREEMENT OF LIMITED LIABILITY COMPANY

SCHEDULE C

Schedule of Members and Contributions to Capital

Name: R.A.I.N Technologies LLC

Date: June 05, 2019

<u>Name Of Member</u>	<u>Total Capital Contribution (Book Value)</u>	<u>Percentage of Ownership Percentage of Profit Distribution</u>	<u>Date by which Contribution Must Be Made</u>
[REDACTED]	\$	22%	
Michael Anthony Brait, Jr.	\$	34%	
Stone Vardon Hazlett	\$	22%	
[REDACTED]	\$	22%	
TOTALS:	\$	100%	

The above LLC interests are reflected on the books of the LLC as of the above date. Any changes in ownership of LLC interests from the above will be indicated on amendments to this Exhibit A and signed by the parties to this Agreement.

OPERATING AGREEMENT OF LIMITED LIABILITY COMPANY

SCHEDULE D

Statement of Amounts of Cash, Property or Services Contributed by Each Member

Name: R.A.I.N Technologies LLC

Date: June 05, 2019

Name of Member	Cash, Services or Property Contributed	Agreed
	(FMV)	Value
		\$
Michael Anthony Brait, Jr.		\$
Stone Vardon Hazlett		\$
		\$
TOTALS:		\$